

24STCV19368 24STCV19368

County: los-angeles

Division: Civil Law and Motion

Department: 310

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Case Number: 24STCV19368 Hearing Date: June 29, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: June 29, 2026

Case Name: Dubey v. Blower, et al.

Case No.: 24STCV19368

Matter: Motion to Vacate Dismissal

Moving Party: Plaintiff Rakesh Dubey

Responding Party: Defendant Jack Blower

Notice: OK

Ruling: The Motion is granted.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

On April 14, 2026, the Court granted Defendant's motion for terminating sanctions against Plaintiff Rakesh Dubey. The Motion was premised on the fact that Plaintiff failed to comply with the Court's January 9, 2026, discovery order compelling

initial responses to requests for production, set one, and form interrogatories. The Court ultimately ruled that it would enter terminating sanctions “[b]ecause there is no opposition and Plaintiff apparently does not wish to participate in the discovery process”

Plaintiff now seeks to set aside the dismissal of this action based on both the mandatory and discretionary provisions of CCP § 473(b).

The mandatory provision of Code Civ. Proc. § 473(b) provides in relevant part, “Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney’s affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties.”

“[A]n attorney affidavit of fault under the mandatory relief provisions of section 473, subdivision (b) need not include an explanation of the reasons for the attorney’s mistake, inadvertence, surprise, or neglect.” (Martin Potts & Assocs., Inc. v. Corsair, LLC (2016) 244 Cal. App. 4th 432, 443.) Moreover, under this mandatory provision “it does not matter whether [counsel’s] neglect was excusable or inexcusable.” (Ibid.)

For the mandatory provision of Code Civ. Proc. § 473(b) to apply, the dismissal must “be the procedural equivalent of [a] default[]” (Leader v. Health Indus. of America, Inc. (2001) 89 Cal.App.4th 603, 618.) Examples of dismissals which are the equivalent of a default are dismissals resulting from counsel’s failure to respond to discovery such that terminating sanctions are imposed (Rodriguez v. Brill (2015) 234 Cal.App.4th 715, 719), counsel’s failure to oppose a dismissal motion (Bernasconi Comm’l Real Estate v. St. Joseph’s Regional Healthcare System (1997) 57 Cal.App.4th 1078, 1082), and counsel’s failure to tender fees for transfer of venue. (Gee v. Estate of Jewett (2016) 6 Cal.App.5th 477, 491.)

Here, the dismissal was only entered because Plaintiff’s counsel did not appear to communicate that he did in fact intend to serve discovery responses. If counsel did appear, the Court would not have entered terminating sanctions. Further, the non-appearance was due to technical difficulties.

There being a sufficient attorney declaration of fault, the Motion is granted. (CCP § 473(b).)

Moving party to give notice.